

THIS LETTING AGREEMENT is dated the

1 May 2025

BETWEEN:

THE LANDLORD:

Mr. Brendan Doyle

Address:

Cleomack House,
Knockdomney,
Moate,
Co. Westmeath

Landlord's telephone/mobile/email:

086 – 823 1661
doylebox@gmail.com

Landlord's Personal Public Service No (PPS):

6681617W

Name and address of Landlord's Agent (if any):

N/A

Agent's telephone/mobile/email:

N/A

AND

THE TENANT(S):

Felipe DeSouza
Cheslem Ariezer Goncalves Sandim

Tenant's telephone/mobile/email:

Felipe: +353 83 8054629
Felipesouza357.fds@gmail.com
Cheslem: +353 83 4693323
cheslemgoncaves@gmail.com

Tenant's Personal Public Service No (PPS):

Felipe: 9996153WA
Cheslem: 9978845DA

Tenant's Date of Birth:

Felipe: 07/12/1995
Cheslem: 01/03/1997

THE DWELLING: Apt 81,
Payne's Lane,
Athlone,
Co. Westmeath
N37 P030

No of bedrooms: 2

THE TERM: 12 months

THE TERM COMMENCEMENT DATE: 16 May 2025

SECURITY DEPOSIT: €1,180
(received on 2 May 2025)

RENT: €1,180 per calendar month

PAYABLE: In advance by monthly standing order to arrive
before the 16th day of each month to the
following account:

Bank: Bank of Ireland, Athlone, Co. Westmeath
Account: Brendan Doyle
BIC: BOFI IE2D
IBAN: IE39 BOFI 901634 52838665

1 Purpose of Agreement

- 1.1 The Landlord lets and the Tenant takes the Dwelling for the agreed Term at the agreed Rent and Security Deposit.

2 The Dwelling

- 2.1 The Dwelling consists of a 2-bedroom apartment of approximately 50 square metres. The apartment is furnished, and a schedule of contents is appended herewith.
- 2.2 There is a shared shed out the back available for storage of bins and other items. This is accessible through the outdoor area of the Black Horse Pub through a legal right of way. This shed is shared between apartments 80 and 81 only. Keys will be supplied for access to the outdoor area and for the shed itself.
- 2.3 It is the responsibility of the tenant to set up broadband and TV supply if required
- 2.4 It is the responsibility of the tenant to arrange an electricity supply with an approved supplier. Meter readings will be supplied and agreed at handover.
- 2.5 It is the responsibility of the tenant to procure a TV licence if one is required.
- 2.6 LPT (property tax) is the responsibility of the landlord.
- 2.7 Pets are not permitted.
- 2.8 Smoking is not permitted.

3 The Term

- 3.1 The letting runs for a period of 12 months from the commencement date.

4 Rent Payment

- 4.1 Rent shall be paid monthly in advance on or before the monthly anniversary of the lease commencement date.
- 4.2 Payment shall be by standing order to the bank account detailed on page 2 of this agreement.
- 4.3 If there is more than one adult sharing the apartment, all shall be named on the lease, and the rent shall be due on a joint and several basis.

5 Clause 5 not applicable

6 Special letting provisions

- 6.1 The tenant shall be responsible for insuring any items or contents which they bring onto the Dwelling and the landlord shall not be responsible for any loss or damage to the tenant's possessions howsoever caused.
- 6.2 Without prejudice to anything herein contained, the landlord shall be entitled to retain the security deposit in the event that the tenants do not, at the expiration of the Term, deliver up the dwelling and the Furniture Fittings and Appliances specified in the document annexed hereto in good order and

repair, clean and tidy (save fair wear and tear excepted). In default of such delivery, the landlord shall be entitled to have the repair works and/or cleaning works carried out and deduct the cost thereof from the Security Deposit, but without prejudice to their remedies in respect of any shortfall therein.

7. The tenant's obligations

- 7.1 To pay the rent to the landlord, or the landlord's agent in the state where the landlord resides abroad, but subject to any deduction of tax as required by law, at the time and in the manner specified, the first payment being made on the date of this agreement.
- 7.2 To pay any public authority charges relating to the dwelling including any which are imposed after the date of this agreement.
- 7.3 To pay interest on any rent outstanding for more than seven days after it falls due.
- 7.4 Not to reduce any payment of rent by making any deductions from it or by setting off any sum against it, save in accordance with law.
- 7.5 To pay to the landlord, or to the landlord's agent a security deposit as stated above in the contract, when this agreement is signed to protect the landlord against the tenant's failure to pay the rent or comply with the other terms of this agreement.
- 7.6 To pay any stamp duty chargeable on the original and counterpart of this agreement.
- 7.7 To pay promptly all charges for the utilities.
- 7.8 To ensure that no act or omission by the tenant, or by any other person in the dwelling with the tenant's consent, results in a breach of the landlord's legal obligations.
- 7.9 Upon receiving notice in writing, to allow the landlord access to the dwelling at reasonable intervals and at a date and time agreed in advance with the tenant, for the purposes of inspecting the dwelling.
- 7.10 To notify the landlord promptly of any defect that arises in the dwelling that requires to be repaired so as to enable the Landlord to comply with his or her obligations in relation to the dwelling under any enactment.
- 7.11 To allow the landlord reasonable access to the dwelling to carry out any works for which the landlord is responsible.
- 7.12 Upon receiving notice in writing from the landlord, to allow anyone who reasonably requires it, access to the Dwelling at a date and time agreed in advance with the tenant, in order to inspect, repair or clean neighbouring property, or any sewers, drains, pipes, wires or cables serving neighbouring property.
- 7.13 To allow the landlord access to the dwelling without giving notice in the case of emergency only.
- 7.14 To take good care of the dwelling and the Furniture and Appliances and to keep them all clean and tidy and not to cause or allow anyone else to cause any damage to them.

- 7.15 Not to do any act that would cause a deterioration in the condition the dwelling was in at the commencement of the tenancy, but there shall be disregarded, in determining whether this obligation has been complied with at a particular time, any deterioration in that condition owing to normal wear and tear, that is to say wear and tear that is normal having regard to:
- (a) the time that has elapsed from the commencement of the tenancy,
 - (b) the extent of occupation of the dwelling the landlord must have reasonably foreseen would occur since that commencement, and
 - (c) any other relevant matters.
- 7.16 If the obligation above is not complied with, to take such steps as the landlord may reasonably require to restore the dwelling to the condition mentioned above or to defray any costs incurred by the landlord in his or her taking such steps as are reasonable for that purpose.
- 7.17 To keep the garden (if any) tidy and well tended.
- 7.18 Not to use, nor allow others to use, the dwelling, or any part of it, for activities which are dangerous, offensive, noxious, noisome, illegal, or which are or may become a nuisance or annoyance to the landlord or the owner or occupier of any neighbouring property.
- 7.19 Not to behave within the dwelling, or in the vicinity of it, in a way that is anti-social, nor to allow anyone else to do so.
- 7.20 To co-operate with the landlord if it becomes necessary for him or her to enforce the tenant's obligations under the tenancy in order to comply with section 15 of the Residential Tenancies Act 2004.
- 7.21 Not to act or allow others to act in a way that could cause any policy of insurance in relation to the dwelling to become void or voidable wholly or in part, nor (unless the tenant has previously notified the landlord and has agreed to pay any increased premium) do or fail to do anything by which additional insurance premiums may become payable.
- 7.22 Not to alter or improve, nor allow others to alter or improve, the dwelling (including the locks and alarm systems and any wiring or cabling there) nor to erect any television or radio aerial or satellite dish there, save in accordance with section 16(l) of the Residential Tenancies Act 2004.
- 7.23 Unless the landlord previously consents in writing, to use the dwelling only as a residence.
- 7.24 To use the dwelling as a residence only for the named tenant and his or her dependents, but not to permit the number of residents to exceed the number of bed spaces specified in this agreement.
- 7.25 To notify the landlord in writing of the identity of each person who for the time being ordinarily resides in the dwelling.
- 7.26 Not to hold, nor allow others to hold, an auction in the dwelling.
- 7.27 To keep all means of access leading to the dwelling free from obstruction.
- 7.28 Not to allow anything to obstruct the sewers or drains.
- 7.29 Not to display any notice or advertisement either on the outside of the dwelling or visible from outside it.
- 7.30 To comply with the lessee's covenants and conditions in any lease under which the landlord holds the dwelling, unless the landlord agrees to do so or

where the Residential Tenancies Act 2004 makes compliance the landlord's responsibility.

- 7.31 To allow the landlord at any time:
- (a) to erect or fix on or outside the dwelling (or the property containing the dwelling), a site notice of intention to make an application for planning permission for any development to the dwelling (or the property containing the dwelling) in manner prescribed by law, and
 - (b) reasonable access to the dwelling for all purposes incidental to making any such application and/or complying with the Planning and Development Acts and the Building Regulations in force for the time being.
- 7.32 If the dwelling is held under a tenancy for a fixed period of at least six months and the tenant intends to remain in occupation on any basis after the expiry of the tenancy, to notify the landlord of that intention in accordance with section 195 of the Residential Tenancies Act 2004.
- 7.33 During the last eight weeks of this tenancy:
- (a) by prior appointment, to allow the landlord, accompanied by not more than two persons at any one time, to enter the dwelling to view it, and
 - (b) to allow the landlord to erect or fix on or outside the dwelling (or the property containing the dwelling) a for sale/to let notice.

When the tenancy ends, to return possession of the dwelling to the landlord, leaving the dwelling in the state in which this agreement requires the tenant to keep it.

- 7.34 Not to cause any of the utilities to be disconnected.
- 7.35 To pay all expenses which the landlord reasonably incurs in:
- (a) the recovery or attempted recovery of arrears of rent or other sums payable under this agreement, and
 - (b) procuring that any failure by the tenant to comply with this agreement is remedied.
- 7.36 The tenant also has the following obligations:
- (i) Not leave the premises vacant for great than 30 consecutive days,
 - (ii) Not to sublet without the landlord's permission,
 - (iii) Not to have pets in the dwelling without the landlord's permission,
 - (iv) Test the smoke alarms at least once per month,
 - (v) Insure personal property in the dwelling,
 - (vi) Not engage in antisocial behaviour, and
 - (vii) Not to smoke, or permit anyone else to smoke, in the dwelling.

8. The landlord's obligations

- 8.1 To allow the tenant to enjoy peaceful and exclusive occupation of the dwelling subject to the Residential Tenancies Act 2004.
- 8.2 To carry out the repairs to the dwelling which the Housing (Standards for Rented Houses) Regulations, 1993 and section 12(1)(b) of the Residential Tenancies Act 2004 require, except where such repairs are necessary due to the failure of the tenant to comply with his obligations mentioned above.

- 8.3 To effect and maintain a policy of insurance in respect of the structure of the dwelling which:
- (a) insures the landlord against damage to, and loss and destruction of, the dwelling, and
 - (b) indemnifies the landlord, to an amount of at least €250,000, against any liability on his or her part arising out of the ownership, possession and use of the dwelling.
- 8.4 To pay promptly to the tenant when he or she quits the dwelling any deposit that he or she has paid except any portion that the landlord is entitled to retain, to cover:
- (a) any arrears of rent and the cost of recovering such arrears, and
 - (b) any breach by the tenant of Clause 2.15 and the costs incurred by the landlord in making good any such breach.
- 8.5 To reimburse the tenant for all reasonable and vouched expenses incurred by the tenant in carrying out repairs where the landlord has failed to comply with section 12(1)(b) of the Residential Tenancies Act 2004, but subject to the conditions set down in section 12(1)(g) of the Residential Tenancies Act 2004.
- 8.6 Where the dwelling is part of an apartment complex, to comply with the requirements of section 12(1)(h) of the Residential Tenancies Act 2004. In particular, the landlord will pay the community service charges.
- 8.7 To make good any damage caused to the dwelling by any person allowed access by the landlord.
- 8.8 To register the tenancy as required by law.

9. Other agreements between the parties

- 9.1 A notice required or authorised to be served or given may be served on or given to the person concerned in one of the following ways:
- (a) by delivering it to the person;
 - (b) by leaving it at the address at which the person ordinarily resides or, in a case in which an address for service has been furnished, at that address;
 - (c) by sending it by post in a prepaid letter to the address at which the person ordinarily resides or, in a case in which an address for service has been furnished, to that address;
 - (d) where the notice relates to a dwelling and it appears that no person is in actual occupation of the dwelling, by affixing it in a conspicuous position on the outside of the dwelling or the property containing the dwelling.
- 9.2 If section 185 of the Residential Tenancies Act 2004 applies now or at any time to this tenancy, or to any future sub-tenancies, to provide the information specified in that section to any person entitled to receive it.
- 9.3 If the landlord is non-resident, and the rent is not payable to the landlord's agent in the State, the tenant shall deduct or withhold from the rent all taxes as required by law. He or she shall account to the Revenue Commissioners for such taxes and furnish evidence to the landlord of their payment to the Revenue Commissioners. Each party will give the other all information

necessary to enable these procedures to operate according to law and to vouch the payment of these taxes to the Revenue Commissioners.

- 9.4 To cooperate in furnishing Personal Public Service Numbers (PPSNs) to each other and in effecting registration of the tenancy in the manner prescribed by law.

Utility meter readings at commencement:

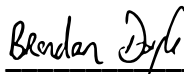
Electricity Meter 1 (day)

Electricity Meter 2 (night)

MPRN 10 015 090 486

Meter number 60613226

Signed by the landlord:



Print Name:

Brendan Doyle

Date:

05/05/2025

Signed by the tenant:



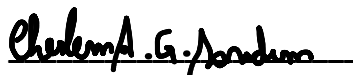
Print Name:

Felipe Delfino de Souza

Date:

06/05/2025

Signed by the tenant:



Print Name:

Cheslem Ariezer Gonçalves Sandim

Date:

06/05/2025